

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod
-000-

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG
PANLUNGSOD, CITY OF DAVAO, HELD ON MONDAY, OCTOBER 8, 1990.

PRESENT:

Councilor Antonio S. Castillo, Acting Presiding Officer
Vice-Mayer Dominador B. Zula, Jr.
Councilor Luis C. Benguyan
Councilor Bonifacio E. Militar
Councilor Alexis C. Almendras
Councilor Leonardo R. Avila, III
Councilor Nilo G. Abellera
Councilor Antonio H. Vergara
Councilor Aristee V.R. Albay
Councilor Gerardo C. Nograles
Councilor Valentine C. Banzon
Councilor Diosdado A. Mahipus
Councilor Tomas Monteverde, Jr.
Councilor Liberio V. Lumain
Councilor Danilo C. Dayanghirang
Councilor Jaime Q. Rodriguez
Councilor Senforiano B. Alterado
Councilor Corazon N. Malanyaon
Councilor Leonora T. Cascarabel
Councilor Renato S. Bangoy
Councilor Agente P. Fuentes
Councilor Victorio S. Advincula
Councilor Teofilo M. Venus
Councilor Guillermo G. Saldaña
Councilor Shane L. Doler
Councilor Matate H. Peli
Councilor Nicanor A. Magno
Councilor Nazario K. Navarro, Sr.

ON OFFICIAL BUSINESS:

Councilor Rafael A. Reyes, Jr.

RESOLUTION NO. 1233

The recall of Resolution No. 1042 with its corresponding Ordinance No. 129, Series of 1990, re: "APPROVING AND IMPOSING PARKING FEES ON ALL VEHICLE OWNERS/DRIVERS FOR USING CERTAIN STREETS IN DAVAO CITY AS PARKING SPACE AND FOR OTHER PURPOSES," which was approved during the regular session on September 5, 1990 and which is still within the confines of the Administrative Staff of this office for amendments particularly on the effectivity of the said ordinance to conform with the provision of the Local Tax Code, was presented for consideration and appropriate action of the Body by Councilor Bonifacio E. Militar.

Councilor Bonifacio E. Militar proposed to recall said resolution and amending its effectivity, i.e., from "fifteen days after publication thereof" to "after approval of the Department of Finance and publication of the same".

After careful deliberation, on motion of Councilor Bonifacio E. Militar, duly seconded by Councilors Aristee V.R. Albay, Senforiano B. Alterado and Renato S. Bangoy, it was

Resolution No. 1233
Ordinance No. 153-A
Series of 1990
Continued :

RESOLVED, AS IT IS HEREBY RESOLVED, To recall Resolution No. 1042, with its corresponding Ordinance No. 129, Series of 1990 re: "APPROVING AND IMPOSING PARKING FEES ON ALL VEHICLE OWNERS/DRIVERS FOR USING CERTAIN STREETS IN DAVAO CITY AS PARKING SPACE AND FOR OTHER PURPOSES," and to amend Section 14 thereof to read as follows, viz:

"SECTION 14 - Effectivity - This Ordinance shall take effect after approval of the Department of Finance and publication of the same."

RESOLVED, FURTHER, To approve an Ordinance entitled:

ORDINANCE NO. 153-A

AN ORDINANCE IMPOSING PARKING FEES ON ALL VEHICLE OWNERS/DRIVERS FOR USING CERTAIN STREETS IN DAVAO CITY AS PARKING SPACES AND FOR OTHER PURPOSES.

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

SECTION 1.- General Purpose - It shall be unlawful for any vehicle owners/drivers to park their motor vehicles on certain streets of Davao City, namely: San Pedro St., Pelayo St., Pichen St., Bolton St., Ilustre St., Iñigo St., C.M. Recto Ave., R. Magsaysay Ave., Villa Abrille St., Monteverde St., V. Duterte St., Marfori St., Basay St., Posadas St., and City Hall Drive, without paying corresponding parking fees;

SEC. 2.- Designated Streets - For the purpose of this Ordinance, the following streets in the City of Davao are hereby designated/identified for parking spaces for motor vehicle, for a fee, viz:

- | | |
|---------------------|---|
| 1. San Pedro Street | - from C.M. Recto Ave., to Quirino Ave., (left side only coming from Recto Ave.) |
| 2. A. Pichen Street | - from Marfori St., to C.M. Recto Ave., (left side only coming from Marfori St.) |
| 3. Ilustre Street | - from San Pedro St., to Jose Canas St., (left side only coming from San Pedro St.) |
| 4. Pelayo Street | - from A. Pichen St., to A. Bonifacio St. (both sides); Loading and unloading area shall be designated at both sides of Pelayo St., at least thirty-five (35) meters from |

Resolution No. 1233
Ordinance No. 153-A
Series of 1990, Cont'd.:

corner of Pelayo and San Pedro Sts.; both sides of that block in-between San Pedro and A. Pichon Sts. shall be designated as loading area; all other portions shall be for parking spaces;

5. Bolton Street - from A. Pichon St., to A. Bonifacio St., (left side only coming from A. Bonifacio St.); Except the right side of from the corner of A. Bonifacio and Bolton Sts. up to ten (10) meters to Rizal St., where parking for a fee shall be allowed; from corner A. Bonifacio St., up to the third gate of U.M., right side, shall be designated as parking area. After the third gate just immediately in front of Mereo shall be designated as loading and unloading area. Left side of this street up to San Pedro St., shall be designated as parking area;
6. Iñigo Street - from A. Pichon St. to A. Bonifacio St. (both sides); Allow parking on both sides, subject to loading and unloading ordinance;
7. C.M. Recto Avenue - from corner San Pedro/Recto Sts. to R. Magsaysay Ave. (left side only coming from San Pedro St. to R. Magsaysay Ave./ Jones Circle);
8. R. Magsaysay Avenue - from G. Bangoy St. to Sales St. (both sides); Left side only coming from Magsaysay Park to Sales St.); - from Sales St. to Jones Circle (both sides); Loading and unloading for vehicles coming from Magsaysay Park down to Sales St. shall be at the right side, left side of which shall be designated as parking space. Both sides from Sales St. down to Jones Circle shall be designated parking space, subject to loading and unloading ordinance;
9. Villa Abrille Street - from Hospital Ave. to L. Guerrero St. (both sides); Loading and unloading area shall be located in front of the Chest Center, both sides. The rest of the spaces shall be designated as parking area, both sides;
10. Monteverde Avenue - from L. Guerrero St. to Leon Garcia St. (both sides); In every block from Guerrero St. down to Garcia St., there shall be a loading and unloading area on both sides. The rest shall be designated as parking area, both sides;

Resolution No. 1233
Ordinance No. 153-A
Series of 1990, Cont'd.:

11. V. Duterte Street - from Ilustre St. to Pelayo St.
(left side only coming from Ilustre St.);
12. City Hall Drive - from San Pedro St. to A. Pichon St. (both sides);
13. Marfori Street - from A. Pichon St. to Posadas St.
(left side only coming from A. Pichon St.);
14. Rasay Street - from A. Pichon St. to Posadas St.
(left side only coming from A. Pichon St.);
15. Posadas Street - from Marfori St. to Rasay St. (left side only coming from Marfori St.);

SEC. 3.- Parking Fee - There shall be collected the amount of Two (P2.00) Pesos for the first three (3) hours and Fifty (P0.50) Centavos per hour thereafter or a fraction thereof on vehicles other than cargo truck, truck for hire and delivery truck which shall be charged the amount of Five (P5.00) Pesos for the first two (2) hours and Two (P2.00) Pesos per hour thereafter from the owners/drivers of motor vehicles who avail of the city streets mentioned in Section 2 hereof as parking spaces; - A one year ticket fixed at P500.00 per vehicle shall be allowed with the issuance of the annual parking sticker by the City Government, except cargo trucks and the like which shall be charged P1,000.00 yearly;

SEC. 4.- Collected Fees - Parking fees collected under this Ordinance shall accrue to the City Government of Davao and form part of the general fund;

SEC. 5.- Time Coverage - This Ordinance shall be observed and enforced starting 6:00 o'clock in the morning until 9:00 o'clock in the evening;

SEC. 6.- Prohibition - In no instance should parking bay be designated or located in front of fire hydrants and fire stations;

SEC. 7.- Traffic signs and pavement markings - The Traffic Management and Traffic Control Unit shall prepare the details and plan specifications and shall implement the installation of appropriate traffic signs and parking bay markings;

Resolution No. 1233
Ordinance No. 153-A
Series of 1990, Cont'd.:

SEC. 8 - Parking Bay - The Traffic Management and Traffic Control Unit shall properly designate parking bays for cargo trucks, trucks for hire, delivery trucks and all other vehicles on all these designated/identified streets;

SEC. 9 - Parking Aides - The Traffic Management and Traffic Control Unit, for the purpose of this Ordinance, shall recommend to the City Mayor the hiring of Parking Aides who shall be charged with the duties of collecting the fees for the use of the pay parking facilities, using any form of official receipt to be issued to the driver and/or owner of the motor vehicle parked in said designated/identified streets; - Parking Aides shall be required to post a cash bond of P1,000.00;

SEC. 10.- Liability of Drivers and/or Owners - The drivers and/or owners of motor vehicles shall be liable jointly and severally for the non-payment of parking fees and for violation of any provisions of this Ordinance;

SEC. 11.- Appropriation for Initial Expenses - In order to immediately implement the provisions of this Ordinance, there shall be appropriated the amount of One Hundred Thousand (P100,000.00) Pesos from any sources of fund that the City Treasurer may designate to defray the initial expenses necessary to effectively and efficiently carry out the purpose of this Ordinance;

SEC. 12.- Penalty - Any person or persons responsible for the violation of any of the foregoing provisions shall be criminally prosecuted and upon conviction, be punished by a fine of not exceeding Five Hundred (P500.00) Pesos or one (1) month imprisonment or both at the discretion of the court;

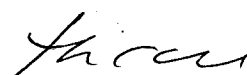
SEC. 13.- Repealing Clause - All other Ordinances or parts thereof which are inconsistent with the provisions of this Ordinance are hereby deemed repealed, modified or amended, accordingly;

SEC. 14.- This Ordinance shall take effect after approval of the Department of Finance and publication of the same.

ENACTED: October 8, 1990.

A vote of unanimity was entered into the records.

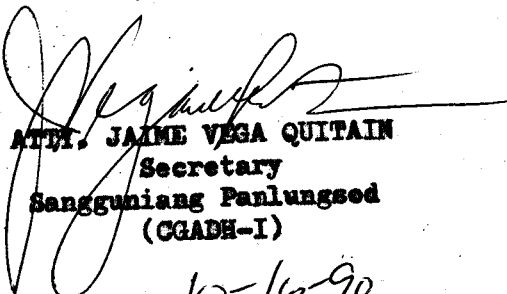
APPROVED:


ANTONIO S. CASTILLO
City Councilor
Acting Presiding Officer

Continued on Page -6-

Resolution No. 1233
Ordinance No. 153-A
Series of 1990, Cont'd.:

ATTESTED:


ATTY. JAIME VEGA QUITAIN
Secretary
Sangguniang Panlungsod
(CGADH-I)

Date: 10-16-90

APPROVED: Signed, 1990

Note: Deemed approved after the lapse
of ten (10) days.
RODRIGO R. DUTERTE
City Mayor I
City of Davao

ATTESTED:

BENJAMIN C. DE GUZMAN
City Administrator
City Secretary - Designate